

		However, as Defendant notes, there has been no request for an injunction by Defendant, and any dispute regarding the production of records would not be resolved by way of a demurrer. A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) To the extent this demurrer serves as an opposition to Defendant's demurrer and motion to strike, the court has already considered it in ruling on those matters. (See ROA #47, #53.) Therefore, the court will overrule the demurrer in its entirety. Defendant shall give notice of this ruling.
3	William N. Langstaff Professional Dental Corporation vs. Swope 30-2024-01439562	<u>Motion to Continue Action After Party's Death</u> Toby Herscovitz-Langstaff's Motion to Continue Pending Action by Decedent's Representative is GRANTED. Toby Herscovitz-Langstaff shall continue this action in the place of Plaintiff William N. Langstaff DDS, as his successor in interest. <u>Pending Motion</u> Toby Herscovitz-Langstaff moves for an order allowing this action to be continued by her in the place of Plaintiff William N. Langstaff DDS upon his passing. <u>Standard to Continue Action After Party's Death</u> Civil Procedure Code section 377.20 provides that "[e]xcept as otherwise provided by statute, a cause of action for or against a person is not lost by reason of the person's death, but survives subject to the applicable limitations period." (Code Civ. Proc., § 377.20, subd. (a).) A cause of action that survives the death of a plaintiff passes to "the decedent's successor in interest." (Code Civ. Proc., § 377.30.)

		"Decedent's successor-in-interest" means "the beneficiary of the decedent's estate or other successor in interest who succeeds to a cause of action or to a particular item of the property that is the subject of a cause of action." (Code Civ. Proc., § 377.11.) The Civil Procedure Code states that a motion may be made to allow a cause of action to be continued after the plaintiff's death: On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest. (Code Civ. Proc., § 377.31.) The Civil Procedure Code also requires that "[t]he person who seeks to commence an action or proceeding or to continue a pending action or proceeding as the decedent's successor in interest" must execute and file an affidavit or declaration that contains seven statements, including a statement that "[t]he affiant or declarant is the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) and succeeds to the decedent's interest in the action or proceeding" and that "[n]o other person has a superior right . . . to be substituted for the decedent in the pending action or proceeding." (Code Civ. Proc., § 377.32, subd. (a).) The seven statements that must included in the affidavit or declaration are: (1) The decedent's name. (2) The date and place of the decedent's death. (3) "No proceeding is now pending in California for administration of the decedent's estate." (4) If the decedent's estate was administered, a copy of the final order showing the distribution of the
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		decedent's cause of action to the successor in interest. (5) Either of the following, as appropriate, with facts in support thereof: (A) "The affiant or declarant is the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) and succeeds to the decedent's interest in the action or proceeding." (B) "The affiant or declarant is authorized to act on behalf of the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) with respect to the decedent's interest in the action or proceeding." (6) "No other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding." (7) "The affiant or declarant affirms or declares under penalty of perjury under the laws of the State of California that the foregoing is true and correct." (Code Civ. Proc. § 377.32, subds. (a)(1)-(a)(7).) Here, Toby Herscovitz-Langstaff provides a declaration identifying the deceased as Plaintiff William N. Langstaff DDS, and stating that he died on January 2, 2026 in Santa Ana, California. (Decl. of Toby L. Herscovitz-Langstaff Pursuant to Section 377.32 of the Code of Civ. Proc. (Herscovitz-Langstaff Decl.), ¶ 2.) She also provides a copy of the death certificate of Plaintiff William N. Langstaff DDS. (See <i>id.</i>, ¶ 6, Exh. A.) She states that she is the surviving spouse of Plaintiff William N. Langstaff DDS; that she is his successor in interest, as defined in Civil Procedure Code section 377.11; and that she succeeds to his interest in this action. (See <i>id.</i>, ¶ 4.)
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		Herscovitz-Langstaff also declares that no proceeding is now pending in the State of California for administration of the Estate of William N. Langstaff. (See <i>id.</i>, ¶ 3.) She also states that no other person has a superior right to commence this action or to be substituted for Plaintiff William N. Langstaff, DDS in in this action. (See <i>id.</i>, ¶ 5). Finally, Herscovitz-Langstaff declares under penalty of perjury under the laws of the State of California that the above statements are true and correct. ((See <i>id.</i> at p. 2.) Here, Langstaff-Herscovitz has complied with the requirements of Section 377.32. Further, no opposition or response to the motion has been filed. Thus, any arguments regarding the motion have been waived. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see <i>DuPont Merck Pharmaceutical Co. v. Superior Court</i> (2000) 78 Cal.App.4th 562, 566 [holding that failure to challenge contention in brief results in the concession on that issue].) Therefore, the court will grant the motion Successor in Interest Toby Herscovitz-Langstaff shall give notice of this ruling.
4	Doe vs. Jean Reno, LLC 30-2025-01505591	<u>Motion to Be Relieved as Counsel</u> Counsel Matt D. Zumstein’s and Shaida Shahinfar’s Motion to Be Relieved as Counsel For Defendant Jean Reno, LLC dba Glyph Salon is taken OFF CALENDAR pursuant to Defendant Jean Reno LLC dba Glyph Salon’s Notice of Withdrawal of Motion to Be Relieved as Counsel filed on June 2, 2026 (ROA #72).
5	Knoll vs. Colbert	<u>Motions to Be Relieved as Counsel</u>